

LoanServe — Non-Resident Indian Lending Policy

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Scope and Application

This policy governs lending to a Non-Resident Indian and to a Person of Indian Origin holding a valid passport. It applies in addition to the terms for the product being taken and to the Eligibility Norms. Lending is confined to home loans and to loans against property in India. A personal loan is not offered to a non-resident applicant.

Eligibility

Non-Resident Indian applicants must hold a valid Indian passport and a continuous overseas employment record of at least one year. The maximum tenure for a Non-Resident Indian home loan is 180 months.

Operational Requirements

Repayment must be made from a Non-Resident External or Non-Resident Ordinary account. A resident power of attorney holder must be nominated for property related documentation.

Documentation

An employment contract attested by the Indian embassy is required for salaried Non-Resident Indian applicants.

Establishing Non-Resident Status

Status is established from the passport, the visa or residence permit, and the employment contract taken together. A seafarer establishes status through the continuous discharge certificate and the contract of employment. A change from non-resident to resident status must be notified within thirty days and the repayment arrangement is then revised. Where status cannot be established, the application is assessed as a resident application and lending is confined accordingly.

Income and Currency

Overseas income is converted at the reference rate on the date of assessment and is not revalued during the tenure. Income is counted only where it is credited to a bank account and evidenced by statements for twelve months. Where income is earned in a currency subject to exchange restriction, only the repatriable portion is counted. Rental income from Indian property is counted at seventy percent of a registered lease.

Documentation and Attestation

Documents executed overseas must be attested by the Indian embassy or consulate, or apostilled where the country is party to the relevant convention. A power of attorney for property documentation must be executed in the prescribed form and registered in India. Copies of the passport and visa must be self attested on every page. Where a document is in a foreign language, a certified translation is required.

Definitions

'Non-Resident External account' means a rupee account funded from overseas earnings, the balance in which is freely repatriable. 'Power of attorney holder' means the resident nominated to sign property documents on the applicant's behalf.

Exceptions and Discretion

The requirement of one year of continuous overseas employment is not waived. The maximum tenure of 180 months is not extended. A resident co-applicant may be accepted to strengthen an application but does not change the tenure ceiling. Any relaxation is approved by the International Banking desk and

recorded with its reason.

Records and Evidence

The passport, visa, employment contract and attestations are retained for eight years from closure. The record of the reference rate used for income conversion is retained with the assessment. The registered power of attorney is held with the security documents.

Related Policies

The Non-Resident Indian Lending Policy should be read with: Know Your Customer Requirements, Co-Applicant and Guarantor Rules, Moratorium and Restructuring Policy, Home Loan Terms and Conditions.

Regulatory and Compliance Notes

This policy follows the foreign exchange directions governing lending to non-residents and the repayment of such loans. Repayment from a Non-Resident External account preserves repatriability of the eventual sale proceeds within the limits allowed. LoanServe does not advise on the tax position of a non-resident borrower, who should take independent advice.

Review and Governance

Owned by the International Banking desk and reviewed whenever the foreign exchange rules governing repatriation change.